In Person vs Monica Upadhyay on 18 February, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:22819

Court No. - 77

Case :- APPLICATION U/S 482 No. - 31974 of 2024

Applicant :- In Person

Opposite Party :- Monica Upadhyay

Counsel for Applicant :- In Person

Counsel for Opposite Party :- Durgesh Pratap Singh,Sujan Singh

Hon'ble Arun Kumar Singh Deshwal,J.

1. Heard Sri Mukesh N. Upadhyay, applicant-in-person through video conferencing and Sri Sujan Singh, learned counsel for opposite party.

2. The present 482 Cr.P.C. application has been filed to quash the proceeding of Case No.278 of 2020, under Section 12 of the Protection of Women From Domestic Violence Act, 2005 (hereinafter referred to as 'the Domestic Violence Act') pending in Family Court, Varanasi.

3. From the perusal of record, it appears that this matter was referred to Mediation Centre, High Court, Allahabad, vide order dated 16.10.2024 but as per the report of the Mediation Centre dated 12.11.2024, mediation between the parties has been failed. The court still tried to persuade the parties to settle the dispute amicably being a matrimonial dispute but the parties could not settle the dispute. Therefore, court proceeded to hear this case on merit.

4. The applicant-in-person has submitted that impugned proceeding is nothing but harassment of the applicant as the same is pending since 2020. The court below could not conclude the proceeding u/s 12 of the Domestic Violence Act, despite the specific mandate of the Domestic Violence Act to conclude the trial, expeditiously.

5. Per contra, learned counsel for opposite party has submitted that there is no illegality in the impugned proceeding and the applicant can raise objection before the court below. As the objection raised by the applicant against the impugned proceeding are his defence which cannot be considered to quash the impugned proceeding.

6. After hearing the submission of learned counsel for the parties and on perusal of record, it appears that present applicant had earlier approached to this court by filing Application u/s 483 No.356 of 2024 to conclude the proceeding of the case no.278 of 2020, u/s 12 of Domestic Violence Act, expeditiously which was disposed of by a coordinate Bench of this court vide order dated 11.03.2024, directing the court below to make endeavour to decide the aforesaid case in view of the provision as contained u/s 12(5) of the Domestic Violence Act. Proceeding under the Domestic Violence Act is essentially civil in nature which should not normally interfere in exercise of power u/s 482 Cr.P.C., unless there appears to be abuse of process of court. This court in the case of Devendra Agarwal & 3 Others Vs. State of U.P. & Another in Application u/s 482 No.18994 of 2024 has observed that proceeding under Domestic Violence Act is essentially civil in nature and the court should not normally interfere in exercise of power u/s 482 Cr.P.C. against the issuance of notice. Paragraph nos.45, and 46 of Devendra Agarwal's case (supra) are being quoted as under:

> "45. However, it would be appropriate to mention that issuance of notice under Section 12 of the D.V. Act, 2005 is not like issuance of summon in complaint case. Therefore, aforesaid notice can be recalled by the court on filing the objection by opposite party No.2 as observed by the Apex Court in the case of Kamatchi (supra) as well as by this Court in the case of Amardeep Sonkar (supra). Therefore, normally the Court should not interfere in exercise of power under Section 482 Cr.P.C. against the issuance of notice in the proceeding under Section 12 of the D.V. Act, 2005, otherwise it will defeat the basic object of the D.V. Act, 2005.
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> 46. From the above analysis, it is clear that application under Section 482 Cr.P.C. (now Section 528 B.N.S.S.) is maintainable against the orders and proceedings passed under the D.V. Act, 2005 to prevent the abuse of process of court and also to secure the ends of justice.
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> Conclusion
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> (i) The Court of Judicial Magistrate as mentioned in Section 27 of the D.V. Act, 2005 and the Court of Session as mentioned in Section 28 of the D.V. Act, 2005 are criminal courts.
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> (ii) Application under Section 482 Cr.P.C. (now Section 528 B.N.S.S.) is maintainable against the proceeding or orders passed under the D.V. Act, 2005 in appropriate cases to prevent abuse of the process of court and to secure the ends of justice.
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> (iii) Judgement of Suman Mishra (supra) is per incuriam as the same was against the ratio of full Bench judgement of Allahabad High Court in the case of Dinesh Kumar

Yadav (supra)."

7. In the present case, the applicant could not persuade this court that the impugned proceeding amounts to abuse of process of court on the part of opposite party no.2.

8. Therefore, this court does not find any illegality in the impugned proceeding.

9. However, the learned Principal Judge, Family Court, Varanasi is directed to conclude and decide the trial of Case No. 278 of 2020, arising out of proceeding u/s 12 of the Domestic Violence Act, expeditiously preferably within a period of 60 days from the date of receipt of copy of this order.

10. With the aforesaid direction, the application is disposed of.

Order Date :- 18.2.2025 S.Chaurasia